



CHAPTER 36.

An Act to make provision for temporary housing accommodation, and for purposes connected therewith.

[10th October 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. With a view to enabling local authorities for the purposes of **Provision for making structures for temporary housing available to housing authorities.** Part V of the Housing Act, 1936 (in this Act referred to as "the principal Act") to provide as a matter of urgency temporary housing accommodation for the purposes of the discharge of their duties under the said Part V, the Minister of Health (in this Act referred to as "the Minister") may, by arrangements made by him with the Minister of Works for the manufacture or construction thereof and for the erection thereof on land acquired or appropriated for the purposes of the said Part V by any such authority, make structures for use by any such authority for providing such accommodation available to the authority on such terms as the Minister may agree with them: **26 Geo. 5. & 1 Edw. 8. c. 51.**

Provided that, unless it is otherwise hereafter determined by Parliament, no structures shall be made available under this section after the first day of October, nineteen hundred and forty-seven, other than structures intended to be made available before that date whose manufacture or construction was put in hand at a time when it appeared to the Minister that it would be practicable to make them available before that date.

2.—(1) The Minister may cause a structure made available under the preceding section, together with any fittings forming part thereof, to be taken down and removed under arrangements made by him with the Minister of Works, on giving to the local **Removal of structures made available under s. 1.**

authority such notice of his intention in that behalf as may be provided for by the terms agreed and shall do so on being requested to do so by the local authority at any time after the expiration of ten years from the passing of this Act unless it appears to the Minister that housing conditions require that it should remain, but whilst remaining on the land the structure and any such fittings as aforesaid shall be deemed to be fixtures forming part of the freehold of the land.

(2) Where the Minister causes a structure to be removed under this section, he may, if the local authority so request, cause to be executed under arrangements made as aforesaid all such works as may be required for clearing the land of any substructure or other materials affixed to the land for the purposes of the erection of the structure.

(3) Structures, fittings and materials removed under this section shall be held or disposed of for the benefit of the Crown in such manner as the Minister may determine.

Terms on
which struc-
tures may be
made available
under s. 1.

3.—(1) The terms on which a structure may be made available under section one of this Act shall include provision for the making of a payment by the local authority to the Minister for each financial year, or part of a financial year, during which the structure remains on the land:

Provided that, in the case of a structure made available for erection on land of exceptionally high value, the said terms may either—

(a) not include any such provision, or

(b) not include any such provision but on the contrary provide for the making of a contribution by the Minister out of moneys provided by Parliament towards expenses incurred by the local authority in connection with the provision and maintenance of housing accommodation in the structure.

(2) The said terms may include any such provisions with respect to the use, management or maintenance of the structure in question, to the execution by or at the expense of the local authority of any works in connection with the erection of the structure or with the provision of housing accommodation therein, or to other relevant matters, being provisions consistent with the provisions of this Act and of the principal Act, as may appear to the Minister to be expedient.

Adaptation of
certain pro-
visions of
principal Act.

4.—(1) The provisions of the principal Act relating to houses provided by a local authority under Part V of that Act shall, as respects the period during which structures made available under section one of this Act remain on the land, have effect in relation to such structures, and housing accommodation provided in such structures shall be deemed to be provided under the said Part V.

(2) In paragraph (a) of section seventy-three of the principal Act (which confers on a local authority power to acquire land as a site for the erection of houses) the reference to a site for the erection of houses shall be deemed to include a reference to a site for the erection of structures which may be made available to the local authority under section one of this Act, and any land acquired under that paragraph as such a site shall be deemed to be land acquired for the purposes of the said Part V.

(3) In paragraph (b) of the proviso to subsection (4) of section one hundred and three of the principal Act (which provides that, without prejudice to the powers conferred on a metropolitan borough council by that Act with respect to the provision of housing accommodation within their borough, the London County Council shall be a local authority for the purposes of Part V of the principal Act as respects any part of the administrative county of London, other than the City of London, for the purpose of providing such housing accommodation as is mentioned in sub-paragraphs (i) to (iii) of that paragraph) the following sub-paragraph shall be inserted, that is to say—

“(iv) temporary accommodation in structures made available under section one of the Housing (Temporary Accommodation) Act, 1944.”

(4) The Minister's making any such arrangements as aforesaid shall not, nor shall any approval given by him in connection with the execution of any such arrangements or the use of any structures the subject thereof, be treated as an approval by him for the purposes of subsection (2) of section one hundred and thirty-eight of the principal Act (which provides that, where the Minister has approved plans and specifications inconsistent in certain respects with building byelaws, proposals for such works as are therein mentioned involving departure from the byelaws only to the like extent as in the case of the plans and specifications approved by the Minister may be carried out).

5.—(1) A person authorised in writing by a local authority for the purposes of Part V of the principal Act may at all reasonable times, on production if required of his authority, enter upon land which the local authority are authorised to purchase compulsorily for the purposes of the said Part V, or the acquisition of which for those purposes is under consideration by them, for the purpose of determining whether the land is suitable as a site for the erection of structures which may be made available to the local authority under section one of this Act and the plan on which any such structures should be laid out thereon, and of surveying, taking levels or probing or boring for that purpose, or for the purpose of estimating the value of the land :

Provided that if the land is occupied, admission thereto shall not be demanded as of right unless twenty-four hours notice of the intended entry has been given to the occupier.

(2) A local authority shall make to any person who sustains any damage by reason of anything done, in exercise of powers conferred by this section, by a person authorised by them, compensation in respect thereof of an amount to be determined by agreement between them and that person, or, in default of agreement, by an arbitrator to be appointed, in default of agreement, by the Minister.

Temporary powers for obtaining possession of land for erection of structures to be made available under s. 1.

6.—(1) During the period between the passing of this Act and the end of the year nineteen hundred and forty-five the provisions of the next succeeding subsection shall have effect for enabling a local authority for the purposes of Part V of the principal Act to obtain possession of land for use as a site for structures to be made available under section one of this Act.

(2) A local authority for the said purposes may enter upon and take possession of land as to which the Minister is satisfied that it is required for use as aforesaid if authorisation in writing in that behalf has been given to them in accordance with the following requirements, that is to say—

- (a) the authority must have served, in manner mentioned in the next succeeding subsection, on every owner and occupier of any of the land in question a notice in writing stating that they have made or intend to make an application to the Minister for an authorisation under this subsection as respects land described in the notice, being land consisting of or comprising the land in question, and that representations which any of the persons required to be served desires to make must be made to the Minister in writing within fourteen days from the date of the service of the notice on him ; and
- (b) the Minister must, before giving the authorisation, have considered any representations made to him as aforesaid by any of the persons aforesaid.

(3) Such a notice as is mentioned in the last preceding subsection shall be deemed to be duly served—

- (a) on a person being an owner or occupier of any of the land in question if such a notice, addressed to him by name, is delivered to him or left at, or sent by post in a prepaid letter to, his usual or last known place of abode ;
- (b) on a person being an owner or occupier of any premises comprised in the land in question which appear to the local authority to be separately occupied, if such a notice, addressed to " the owner and the occupier " of the premises (describing them), is delivered to some person on the premises, or, if there is no person on the premises to whom it can be delivered, is affixed to some conspicuous object on the premises ;

- (c) on all persons being owners or occupiers (if any) of premises comprised in any part of the land in question which appears to the local authority to be unoccupied, if such a notice, addressed to "the owners and any occupiers" of that part of the land (describing it), is affixed to some conspicuous object on that part of the land.

(4) Where a local authority have taken possession of land pursuant to an authorisation under this section, they shall by virtue of this section have power to acquire the land compulsorily as if they had been authorised so to do by an order under section seventy-four of the principal Act, made, submitted and confirmed in accordance with the provisions of the First Schedule thereto, incorporating the enactments required to be incorporated in such an order with the modifications and adaptations appropriate to such an order, and the authority shall as soon as may be after taking possession of the land serve notice under section eighteen of the Lands Clauses Consolidation Act, 1845, of their intention to take the land and shall in all respects be liable as if such notice had been given on the date of their entering on the land, except that the power conferred by subsection (2) of section five of the Acquisition of Land (Assessment of Compensation) Act, 1919, to withdraw such a notice shall not be exercisable.

8 & 9 Vict.
c. 18.

9 & 10 Geo. 5
c. 57.

(5) A power to enter on and take possession of land conferred by an authorisation given under this section may, save as hereinbefore in this section provided, be exercised without notice to or the consent of any person and without compliance with sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, but subject to payment of the like compensation, and interest on the compensation agreed or awarded, as the local authority would have been required to pay if those provisions had been complied with.

(6) While a local authority are in possession of land pursuant to an authorisation given under this section,—

- (a) the land may be used for the erection thereon of structures made available under section one of this Act, and all works required for that purpose may be executed thereon ;
- (b) the land may be used for the provision of housing accommodation in such structures erected thereon, and the authority may make contracts for the occupation of the land and such structures erected thereon by the persons for whom housing accommodation is to be provided therein ;
- (c) any right of way over the land, or other right relating thereto enjoyed by any person whether by virtue of an interest in the land or otherwise, shall, in so far as the exercise thereof would interfere with the use of the land as aforesaid or the execution of any such works as aforesaid, not be exercisable.

(7) In this section the expression "owner" has the meaning assigned to it by section one hundred and eighty-eight of the principal Act.

Application
to Scotland.

7. The preceding provisions of this Act shall in their application to Scotland have effect subject to the following modifications :—

15 & 16
Geo. 5. c. 15.

- (a) for references to the Minister of Health there shall be substituted references to the Secretary of State ;
- (b) for references to the Housing Act, 1936, there shall be substituted references to the Housing (Scotland) Acts, 1925 to 1938 ; and for references to Part V of the Housing Act, 1936, there shall be substituted references to Part III of the Housing (Scotland) Act, 1925 ;
- (c) in subsection (1) of section two the words "of the freehold" shall be omitted ;
- (d) for subsection (2) of section four there shall be substituted the following subsection—

"(2) A local authority may acquire land for the erection of structures which may be made available to them under section one of this Act in like manner as they may acquire land for the purposes of Part III of the Housing (Scotland) Act, 1925, and any land so acquired for such erection shall be deemed to be land acquired for the purposes of the said Part III" ;

- (e) in subsection (4) of section four for the reference to section one hundred and thirty-eight of the Housing Act, 1936, there shall be substituted a reference to section eighty of the Housing (Scotland) Act, 1925 ; and
- (f) in section six for references to section seventy-four of the Housing Act, 1936, and to the First Schedule thereto there shall be substituted respectively references to section fifty-one of the Housing (Scotland) Act, 1925, and to the Second Schedule to the Housing (Scotland) Act, 1930 ; for references to section eighteen and to sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, there shall be substituted respectively references to section seventeen and to sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845 ; and for the reference to section one hundred and eighty-eight of the Housing Act, 1936, there shall be substituted a reference to section forty-nine of the Housing (Scotland) Act, 1930.

20 & 21
Geo 5. c. 40.

8 & 9 Vict.
c. 19.

Financial
provisions.

8.—(1) The Treasury may issue out of the Consolidated Fund of the United Kingdom sums not exceeding, unless it is otherwise hereafter determined by Parliament, one hundred and fifty

million pounds to defray the expenses incurred by the Minister of Works in connection with the manufacture, construction or erection of structures under arrangements made as aforesaid.

(2) For the purpose of providing sums to be issued under the preceding subsection, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under the National Loans Act, 1939. . 2 & 3 Geo. 6.
c. 117.

(3) The following provisions of this subsection shall have effect as respects the repayment of sums issued under subsection (1) of this section, that is to say :—

(a) the aggregate of the sums so issued in any financial year shall be repaid into the Exchequer, as mentioned in the next succeeding paragraph, with interest thereon at the rate of two and a half per cent. per annum, the said interest accruing, as respects the whole aggregate, from such date in the financial year in which the sums are issued as the Treasury may determine ;

(b) the said aggregate shall be repaid by ten equal annual instalments, of principal and interest combined, falling due on the anniversary of the date determined under the preceding paragraph, the first such instalment falling due in the financial year next following the financial year in which the sums in question were issued ;

(c) any instalment to be paid into the Exchequer under the last preceding paragraph shall be paid, as to such part thereof as the Treasury may direct out of moneys provided by Parliament for the service of the Ministry of Health, and as to the remainder thereof out of moneys so provided for the service of the Department of Health for Scotland.

(4) The sums paid into the Exchequer under the last preceding subsection shall be issued out of the Consolidated Fund of the United Kingdom at such times as the Treasury may direct and shall be applied by the Treasury as follows :—

(a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit ;

(b) so much thereof as represents interest shall be applied to the payment of interest which would, apart from this paragraph, have fallen to be paid out of the permanent annual charge for the National Debt.

(5) Expenses incurred in the removal of structures, fittings or materials under section two of this Act shall be defrayed out of

moneys provided by Parliament, and the proceeds of any disposal thereof under that section shall be paid into the Exchequer.

(6) Receipts of the Minister under subsection (1) of section three of this Act shall be paid into the Exchequer.

(7) The Minister of Works shall, as respects each financial year in which sums are issued out of the Consolidated Fund under subsection (1) of this section or in which he incurs expenses as mentioned in that subsection, prepare in such form and manner as the Treasury may direct an account of sums so issued and received by him and of such expenses incurred by him.

Any account prepared under this subsection shall, on or before the thirtieth day of November next following the expiration of the financial year in question, be transmitted to the Comptroller and Auditor General who shall examine and certify the account and lay copies thereof, together with his report thereon, before Parliament.

Short title,
construction,
citation and
extent.

9.—(1) This Act may be cited as the Housing (Temporary Accommodation) Act, 1944.

(2) This Act, in its application to England, shall be construed as one with the principal Act, and may be cited together with the Housing Acts, 1936 and 1938, as the Housing Acts, 1936 to 1944.

(3) This Act, in its application to Scotland, shall be construed as one with the Housing (Scotland) Acts, 1925 to 1938, and may be cited together with those Acts as the Housing (Scotland) Acts, 1925 to 1944.

(4) This Act shall not extend to Northern Ireland.

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